

HOUSE BILL 1791

By Zachary

AN ACT to amend Tennessee Code Annotated, Title 27,
Chapter 1, relative to appeals.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 27-1-101, is amended by deleting the section in its entirety and substituting the following:

The state may appeal as of right an interlocutory order of a circuit or chancery court of this state that:

(1) Grants, continues, or modifies an injunction against the state or any state official;

(2) Denies a motion to dissolve or modify an injunction against the state or any state official;

(3) Denies sovereign immunity to the state or any state official;

(4) Denies qualified immunity for any state official; or

(5) Denies a motion to dismiss filed by the state in an action involving the:

(A) Constitutionality of state law; or

(B) The constitutionality or lawfulness of:

(i) An executive order;

(ii) Administrative rule; or

(iii) Any other governmental action.

SECTION 2. If any provision of this act or the application of any provision of this act to any person or circumstance is held invalid, the invalidity does not affect other provisions or

applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.